

26PSCP00118 26PSCP00118

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-09

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Case Number: 26PSCP00118 Hearing Date: July 9, 2026 Dept: 6

CASE

NAME: Rolling

Green, Inc., et al. v. Gabriel Contreras

Verified

Petition of Rolling Green, Inc. and Victor Zuniga for an Order Authorizing

Preservation of Evidence Pursuant to Code of Civil Procedure § 2035.010, E.T.

SEQ. [sic]

TENTATIVE

RULING

The Court summarily DENIES the Verified Petition of Rolling Green,

Inc. and Victor Zuniga for an Order Authorizing Preservation of Evidence

Pursuant to Code of Civil Procedure § 2035.010, E.T. SEQ. [sic]

without prejudice.

Petitioner is ordered to give notice

of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a petition to preserve evidence under Code of Civil

Procedure section 2035.010, et seq., in connection with an anticipated personal

injury lawsuit. On March 20, 2026, petitioners Rolling Green, Inc. and Victor

Zuniga (collectively, Petitioners) filed this petition against respondent

Gabriel Contreras (Respondent) for an order authorizing preservation of

evidence under Code of Civil Procedure section 2035.010, et seq. Respondent has

not responded to the Petition as of this tentative ruling.

LEGAL STANDARD

(a) One

who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state, whether as a plaintiff, or as a defendant, or in any other capacity, may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), for the purpose of perpetuating that person's own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed.

(b) One

shall not employ the procedures of this chapter for purposes of either ascertaining the possible existence of a cause of action or a defense to it, or of identifying those who might be made parties to an action not yet filed.

(Code Civ.
Proc., § 2035.010.)

DISCUSSION

Petitioners argue that they expect to be defendants in an anticipated personal-injury lawsuit arising from a July 24, 2025 automobile accident, but they cannot adequately defend themselves because Respondent has not produced any medical or employment records despite months of repeated requests. Petitioners contend that pre-litigation discovery is necessary to preserve evidence, including medical records, radiology films, employment data, and prior loss records, that may otherwise be lost, destroyed, or unavailable due to unknown providers and varying record-retention policies. Petitioners argue that they have diligently attempted to meet and confer since August 2025, but Respondent's counsel has provided no records or timeline, preventing meaningful settlement discussions. Petitioners contend they meet the requirements of Code of Civil Procedure section 2035.010 et seq for pre-litigation discovery, including the need to prevent failure or delay of justice.

Petitioners contend that courts routinely grant similar petitions when a respondent refuses to provide medical records. Petitioners argue that granting the Petition will promote judicial efficiency, avoid prejudice, and help facilitate early resolution of the claim. Petitioners request the Court issue an order compelling Respondent's physical examination, production of all medical, billing, or radiology records related to Respondent's alleged injuries in their possession, custody, or control, an order permitting Petitioners to subpoena records to any and all medical providers who may have treated Respondent based on the underlying accident, and for Respondent's employment records in connection with any potential loss of earnings claim.

The Court notes Petitioners have not filed a proof of service of the Petition indicating service in the same manner as a summons and complaint per Code of Civil Procedure section 2035.040, subdivision (a), or that such service was effected at least 20 days before the hearing on the Petition, per section 2035.040, subdivision (c). (Code Civ. Proc., § 2035.040, subds. (a), (c); see Proof of Service (4/1/26); Notice of Continuance (6/29/26).) Courts generally lack jurisdiction to rule on motions "that have not been properly noticed for hearing on the date in question. [Citations.]" (Diaz v. Pro. Cmty. Mgmt., Inc. (2017) 16 Cal.App.5th 1190, 1204-1205; see also Harris v. Board of Ed. of City and County of San Francisco (1957) 152 Cal.App.2d 677, 680 ["where the trial court lacks jurisdiction to make the order, as in a situation where requisite notice has not been given to the plaintiff, it may be vacated by that court at any time thereafter"]; Svistunoff v. Svistunoff (1952) 108 Cal.App.2d 638, 641 ["A sufficient notice of the hearing not having been given, the order was void"].)

Based on the foregoing, the Court summarily DENIES the Petition without prejudice.

CONCLUSION

The Court summarily DENIES the Verified Petition of Rolling Green, Inc. and Victor Zuniga for an Order Authorizing Preservation of Evidence Pursuant to Code of Civil Procedure § 2035.010, E.T. SEQ. [sic] without prejudice.

Petitioner is ordered to give notice of the Court's ruling within five calendar days of this order.